

24STCV31333 24STCV31333

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Case Number: 24STCV31333 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF'S

NOTICE OF MOTION AND MOTION FOR APPROVAL OF REPRESENTATIVE ACTION SETTLEMENT

Moving Party: Plaintiff, Treasure Chardonay Lenarz

Opposing Party: None

Notice: OK

Background Facts

Now before the Court is Plaintiff

Treasure Chardonay Lenarz's unopposed motion for approval of a settlement in this representative Private Attorneys General Act ("PAGA") action.

Motion for Approval
of PAGA Settlement

a. Legal
Standard

The PAGA is "a procedural statute allowing an aggrieved employee to recover civil penalties—for Labor Code violations—that otherwise would be sought by state labor law enforcement agencies." (Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court (2009) 46 Cal.4th 993, 1003.) The statute provides a mechanism for private enforcement of Labor Code violations for the public benefit. (See *Arias v. Superior Court* (2009) 46 Cal.4th

969, 986 (Arias).)

To incentivize employees to bring PAGA actions, the statute provides aggrieved employees 35 percent of the recovered civil penalties. (Lab. Code § 2699, subd. (m).) The remaining 65 percent is distributed to the Labor and Workforce Development Agency (LWDA) “for enforcement of labor laws and education of employers and employees about their rights and responsibilities under th[e Labor] Code.” (Lab. Code § 2699, subd. (m).)

In reviewing the terms of a settlement agreement, the court determines whether the settlement is fair, reasonable, and adequate to all concerned, and not the product of fraud, collusion, or overreaching. (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 337; Nordstrom Commission Cases (2010) 186 Cal.App.4th 576, 581 (Nordstrom).)

Although a PAGA plaintiff need not satisfy class action requirements (see Arias, supra, 46 Cal.4th at p. 975), general principles applicable to class action settlements apply equally in this context. In the context of a class action settlement, the court considers various factors including whether (1) the settlement is the result of arm’s length bargaining, (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently, (3) counsel is experienced in similar litigation, and (4) the percentage of objectors is small. (Nordstrom, supra, 186 Cal.App.4th 576 at p. 581; Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 245 (Wershba), disapproved of on other grounds in Hernandez v. Restoration Hardware, Inc. (2018) 4 Cal.5th 260, 269.)

In considering the amount of settlement, the court is mindful that compromise is inherent and necessary in the settlement process. (Wershba, supra, at p. 250.)

Discussion

i. Summary of Settlement

The terms of the settlement involve

approximately 164 aggrieved employees, with a PAGA period of June 19, 2023, through the entry of the Court's order, a gross settlement amount of \$275,000.00, subject to an escalator provision, minus the credit of \$71,507.00 already paid to aggrieved employees at one of Defendant's multiple work locations, with reductions of \$91,666.67 in Plaintiff's counsel's fees, \$15,015.74 in Plaintiff's counsel's costs, and \$4,990.00 in settlement administrator costs, for a net settlement of \$91,820.59. The net settlement will be distributed 65% to be paid to the California Labor and Workforce Development Agency (LWDA) and 35% to the aggrieved employees, for respective payment amounts of \$59,683.38 and \$32,137.21. The distribution to the aggrieved employees is to be made on a pro rata basis according to the number of pay periods worked by each PAGA member during the PAGA period, with the aggrieved employees comprised of all current and former non-exempt, hourly-paid employees who were employed by Defendant in the State of California at any time during the PAGA period. The funding of the settlement amount will take place no later than seven (7) calendar days after the Court enters Plaintiff's proposed order and the judgment is final. (Motion, pp. 5-8; see Motion, Lazar Decl., ¶¶ 5, 22-24, 26-27 & Ex. 1, Settlement Agreement, §§ 1.4, 1.9, 1.18, 3.1-3.2.4.2.)

ii. Fairness,
Reasonableness, and Adequacy & Fraud, Collusion, and Overreaching

Plaintiff argues that the settlement should be found to be fair and reasonable for various reasons: the settling parties reached a compromise through arms-length negotiations; sufficient investigation and discovery by experienced counsel to act competently in negotiating settlement; the settlement is reasonable in light of the parties' legal positions, the risk of continued litigation, and the underlying purpose of the PAGA. (Motion, pp. 4-5, 10-14; see Motion, Lazar Decl., ¶¶ 19-21, 37-46.)

No opposition is on file.

The Court finds that the settlement before the Court is a result of arms-length bargaining. A declaration from Plaintiff's counsel explains the parties' negotiations. The negotiations included, among other things, a determination by Plaintiff's counsel that Defendants faced a probable maximum statutory penalty of \$1,892,880 and a consideration of the risks of litigation and viability of defenses to Plaintiff's claims to determine that the gross settlement of \$ 275,000.00 was

fair and reasonable. (Motion, Lazar Decl., ¶¶ 40-46.)

iii. Proof
of Service

A proposed PAGA settlement must be submitted to the LWDA at the same time that it is submitted to the court for review and approval. (Lab. Code, § 2699, subd. (s)(2).)

Here, Plaintiff provides a copy of an electronically filed notice with the LWDA regarding the proposed PAGA settlement, thus satisfying this statutory requirement. (Motion, Lazar Decl., ¶ 54, Ex. 6.)

iv. Administrator
Appointment and Costs

The proposed settlement contemplates using the services of Apex Class Action Administration (“Apex”) as the neutral party that will administer the settlement. Apex is allocated \$4,990.00 for its services per the terms of the settlement agreement. (Motion, Lazar Decl., ¶ 25 & Ex. 1, § 3.2.2. at p. 7.)

Plaintiff also provides a declaration from Sean Hartranft, Apex’s Chief Executive Officer, which explains the qualifications and experience of Apex to be an administrator, the protection of class data, and procedures for notice preparation and distribution. Such distribution would include identification of the addresses of the aggrieved employees, mailing a notice of settlement to the aggrieved employees, leveraging use of skip tracing where mail is undeliverable, and providing court-approved notices and translations to aggrieved employees. (Motion, Hartranft Decl., ¶¶ 1-7, Exs. A [summary of services, with details regarding identification and notice], B [pricing].)

The Court thus finds sufficient grounds for relief here.

v. Enhancement
Award

The motion seeks no enhancement

award for Plaintiff personally.

vi. Attorney's

Fees and Costs

An aggrieved employee who prevails

in a PAGA action may recover reasonable attorney's fees and costs. (Labor Code, § 2699, subd. (d)(1).) Whether a plaintiff established entitlement to an award of fees under PAGA is a question best decided by the trial court. (San Diego Municipal Employees Assn v. City of San Diego (2016) 244 Cal.App.4th 906, 915, citation omitted.)

Plaintiff's motion seeks

confirmation of \$91,666.67 in Plaintiff's counsel's fees and \$15,015.74 in Plaintiff's counsel's costs. Counsel's declaration provides grounds in support of the requested fees and costs, including counsel's extensive experience in class action and PAGA actions, counsel's successful litigation approach and sponsorship of settlement discussions, counsel's skill and time expended on necessary tasks, the contingent nature of the case, and other grounds for reasonability. Counsel's declaration provides 10 different fee rates and represents counsel spent 200.2 hours on this action, totaling \$116,628.00 in possible fees, but instead only seeking \$91,666.67, thus supporting reasonableness in juxtaposition to the gross settlement in this action. Counsel also explains that the \$15,015.74 in costs are comprised of costs for e-filing, postage, notice, and photocopies. (Motion, Bibiyan Decl., ¶¶ 3-17 [declarant's fee rates], 21-24 [juxtaposition of fees and settlement], 25-27 [lodestar], 28-32 [hours], 34-35 [skill], 36-37 & Ex. 1 [costs with verified costs summary]; Motion, ¶¶ 47-48, 52 [lodestar], Ex. 4 [exhibit to support rates].)

The Court finds that the fees

sought are reasonable in light of the representations by Plaintiff's counsel, which are entitled to deference and adequately explain the grounds for the fees request here. (See *Sommers v. Erb* (1992) 2 Cal.App.4th 1644, 1651 [fees awarded based on attorney's representation as to hours actually spent on contingency fee representation where no time records were available].)

The Court thus finds sufficient

grounds for relief here.

c. Conclusion

Plaintiff Treasure Chardonay

Lenarz's unopposed motion for approval of a settlement in this representative Private Attorneys General Act ("PAGA") action is GRANTED.

Apex Class Action Administration is

ORDERED APPOINTED as settlement administrator.

The award of attorneys' fees and

costs is the requested \$91,666.67 in counsel's fees and \$15,015.74 in counsel's costs.

The Court shall enter an Order and

Judgment as requested by Plaintiff.

Plaintiff Treasure Chardonay

Lenarz is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.